

TENTATIVE RULING FOR August 25, 2026

Department S22 — JUDGE JANET FRANGIE

(Sitting on Assignment)

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UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.

CIVSB2425314

CHRISTOPHER JESS VASQUEZ v. GENERAL MOTORS, LLC.

TENTATIVE RULING

Plaintiff's Motion for Attorneys' Fees:

"[T]he award of attorney fees under the Song-Beverly Act, unlike other fee-shifting statutes, is limited to actual hours both expended and determined by the court to be reasonably incurred". (*Reynolds v. Ford Motor Co.* (2020) 47 Cal.App.5th 1105, 1112.) "In determining the methodology to be used to award attorney fees under the Song-Beverly Act, the appellate courts have unanimously concluded the lodestar adjustment method of calculating attorney fees is appropriate for two reasons: (1) 'the lodestar adjustment method is based on actual, reasonable attorney time expended as the objective starting point of the analysis,' and (2) 'the lodestar adjustment method is the prevailing rule for calculation of statutory attorney fees unless the statute expressly indicates a contrary intent, and no such contrary intent is apparent'"

(*Ibid.*, quoting to *Robertson v. Fleetwood Travel Trailers of California, Inc.* (2006) 144 Cal.App.4th 785, 820-821; original italics.)

In determining what constitutes reasonable compensation for an attorney who has rendered services in connection with a legal proceeding, the trial court has broad discretion and wide latitude, and the court may make its own determination of the value of the services contrary to, or without the necessity for, expert testimony. (*PICM Group, Inc. v. Drexler* (2000) 22 Cal. 4th 1084, 1095.)

“The courts repeatedly have stated that the trial court is in the best position to value the services rendered by the attorneys in his or her courtroom (citations), and this includes the determination of the hourly rate that will be used in the lodestar calculus. (See, e.g., *Syers Properties III, Inc. v. Rankin* (2014) 226 Cal.App.4th 691, 700–703 [172 Cal. Rptr. 3d 456].) In making its calculation, the court may rely on its own knowledge and familiarity with the legal market, as well as the experience, skill, and reputation of the attorney requesting fees (*Heritage Pacific Financial, LLC v. Monroy (Heritage)* (2013) 215 Cal.App.4th 972, 1009 [156 Cal. Rptr. 3d 26]), the difficulty or complexity of the litigation to which that skill was applied (*Syers Properties*, at p. 700; accord, *Moreno v. City of Sacramento* (9th Cir. 2008) 534 F.3d 1106, 1114), and affidavits from other attorneys regarding prevailing fees in the community and rate determinations in other cases. (*Heritage*, at p. 1009.)” 569 *East County Boulevard LLC v. Backcountry Against the Dump, Inc.* (2016) 6 Cal.App. 5th A426, 437. The Court can reduce hours that appear unreasonably inflated. (*Chavez v. City of Los Angeles* (2010) 47 Cal.4th 970, 990.) Additionally, inefficient or duplicative efforts are not subject to compensation. (*Premier Medical Management Systems, Inc. v. California Ins. Guarantee Ass’n* (2008) 163 Cal.App.4th 550, 556.)

In the current action, the parties agree that Plaintiff is entitled to attorney fees but dispute the amount. Plaintiff seeks a total of \$48,042.62, consisting of \$31,545.00 in claimed attorneys’ fees, a requested 0.5 multiplier enhancement of \$15,772.50, and \$725.12 in costs. (Mot. at 1; Reply at 12.)

As stated by the Court of Appeal, Fourth District, “the reasonable hourly rate in this case is that charged by consumer attorneys practicing in the local legal community”. (*Tidrick v. FCA US LLC* (2025) 112 Cal.App.5th 1147, 1157.) Plaintiff’s counsel’s requested rates are quite high for San Bernardino County, and many fall outside the typical range for Song-Beverly cases in general. (See, e.g.¹, *Hamm v. FCA US LLC* (S.D. Cal. Aug. 16, 2019, No. 3:17-cv-0577-AJB-BGS) 2019 U.S. Dist. LEXIS 141480, at *8-9 (finding rates of \$350-\$550/hour to be reasonable); *Petropoulos v. FCA US LLC* (S.D. Cal. May 29, 2019, No. 17-CV-0398 W (KSC)) 2019 U.S. Dist. LEXIS 89984, at *5-6 (finding rates of \$275-\$550/hour to be reasonable); *Shaw v.*

¹ Unpublished federal cases can be cited, and can be used as “persuasive” authority, “entitled to great weight.” (*Martin v. Gladstone* (2023) 96 Cal.App.5th 681, 691, fn. 8, relying on *Etcheverry v. Tri-Ag Service, Inc.* (2000) 22 Cal.4th 316, 320–321.) Further, “[u]npublished federal district court decisions are “citable notwithstanding California Rules of Court rule 977, which only bars citation of unpublished *California* opinions. Therefore, [unpublished federal district court decisions] are citable as persuasive, although not precedential, authority.” (*City of Hawthorne ex rel. Wohlner v. H&C Disposal Co.* (2003) 109 Cal.App.4th 1668, 1678, fn. 5 (emphasis in original).)

Ford Motor Co., (C.D. Cal. Jan. 3, 2020) No. 5:18cv1169 JLS (KK), 2020 U.S. Dist. LEXIS 2320, 2020 WL 57273, at *3 (approving rates between \$200 and \$550); *Velasco v. Mercedes-Benz USA, LLC* (C.D. Cal. Jan. 4, 2021, No. CV 18-7880-MWF (SKx)) 2021 U.S. Dist. LEXIS 48097, at *6 (awarding a partner hourly rate of \$400 and \$350 for associates, based, in part, on rates approved by San Bernardino Superior Court); *Solace Glob., Inc. v. Mercedes-Benz USA, LLC* (C.D. Cal. Dec. 16, 2025, No. 2:25-cv-00119-ODW (AGRx)) 2025 U.S. Dist. LEXIS 269219, at *6 (“Courts in this district have found that hourly rates varying between \$375.00 and \$550.00 are reasonable in similar lemon law cases”).)

Although some of Plaintiff’s attorneys have significant years of experience, given the rate ranges reflected in the decisions referenced above, and the Court’s knowledge of rates charged in this County, the Court reduces the attorney fee rates as stated below:

<i>Name</i>	<i>Position</i>	<i>Year of Bar Admission</i>	<i>2025/2026 Hourly Rate</i>	<i>Reduced Rate</i>	<i>Hours Worked</i>	<i>Award Reduction</i>
Sepehr Daghighian	<i>Partner</i>	2005	\$625	\$525	13.0	\$1300
Michael H. Rosenstein	<i>Partner</i>	1993	\$700	\$575	2.2	\$275
Brian Murray	<i>Senior Associate</i>	2012	\$550	\$450	18.4	\$1840
Kristina Kousherian	<i>Associate</i>	2021	\$375	-	25.2	-
Miguel A. Ortiz	<i>Associate</i>	2017	\$525	\$425	4.4	\$440

The Court determines that Plaintiff is the prevailing party and is entitled to an award of *reasonable* attorneys’ fees. The Court has carefully scrutinized the motion, the supporting Declarations and the billing and reviewed the Court’s file and the pleadings.

Plaintiff seeks a 1.5 multiplier based on the risk of taking this case on a contingency fee basis, the delay in payment, and the successful settlement. (Mot. at 11-13.) “A trial court should award a multiplier for exceptional representation only when the quality of representation far exceeds the quality of representation that would have been provided by an attorney of comparable skill and experience billing at the hourly rate used in the lodestar calculation. Otherwise, the fee award will result in unfair double counting and be unreasonable.” (*Ketchum v. Moses* (2001) 24 Cal.4th 1122, 1139.) Although Plaintiff’s counsel obtained a recovery on behalf of their client, it is not clear the quality of representation “far exceeds the quality of representation

that would have been provided by an attorney of comparable skill and experience billing at” the rates requested. (*Ketchum v. Moses*, *supra*, 24 Cal.4th 1122, 1139.)

Given the routine nature of lemon law work, the rates awarded in this ruling are appropriate in order to fully compensate counsel for the contingent nature of the work. Reward for contingent risk may be factored in either when determining the lodestar rate or via a multiplier. *Horsford v. Board of Trustees of California State University* (2005) 132 Cal.App.4th 359 at 394-395. Although Plaintiff prevailed, the results are not so impressive as to justify an increased award given the rote nature of lemon law cases. The Court denies the request for a multiplier.

In determining the reasonable amount of attorney’s fees in this action, the Court is guided by the following additional considerations:

1. Defendant objects to time spent for “pre-engagement work.” *Civil Code* section 1794 provides for the recovery of aggregate fees reasonably incurred by the buyer in connection with the “commencement” and “prosecution” of the action. An attorney’s time spent on a case before the action is filed may be compensable, including time reasonably spent interviewing the client, investigating the facts and law, and preparing the initial pleadings. (See, e.g., *Webb v. Board of Education* (1985) 471 U.S. 234, 242-243 (noting that services performed before a lawsuit is formally begun are often performed “on the litigation,” including drafting the initial pleadings and work associated with developing the theory of the case); see also *Hogar Dulce Hogar v. Community Development Commission* (2007) 157 Cal.App.4th 1358, 1370.) Furthermore, the Court cannot conclude that this time was “pre-engagement” as opposed to “pre-litigation;” that is, time after client retention but prior to filing a lawsuit. Aside from the objection, the Court finds this time is reasonable.
2. Defendant objects to time recorded for Plaintiff’s responses to discovery. Except for the responses to the special and form interrogatories in places, the Court agrees that the responses are boilerplate and seen by the Court in many lemon law cases. That said, there still needs to be a review of the client’s file and records to ensure that actual responses, aside from objections, are accurate, but this task can be performed by a junior attorney with perhaps oversight of the final product by a partner or more senior attorney. The Court has therefore reduced some of the time recorded for discovery responses and lowered the rate to \$375 per hour for most of the time.
3. Defendant objects to the preparation of the Motions in Limine by Plaintiff’s firm. The Court did not find this excessive in light of the fact that it apparently *did not bill* for any Oppositions to Defendant’s Motions in Limine that were filed with the Court. (At least the Court could not find it in the billing record.) Similarly, the Court could not find any time allocated to preparation of Plaintiff’s Expert Designation.

4. Defendant objects to time allocated to clerical and administrative tasks. The Court did find some unreasonable charges that did pertain to clerical and administrative functions and reduced the hours accordingly – unreasonable in the sense that this function could be performed at a much lower rate or were non-legal in manner. Some of the work billed by attorneys, i.e. “assessed the Court’s Docket to confirm future hearing dates and litigation status” and “updated the litigation calendar” are tasks an assistant could do, without any legal training. The Court considered this in the determination of reasonableness and the amount of fees to be awarded. Overall, the Court did not see excessive billing in this regard.
5. Defendant also objects to “block billing.” However, the descriptions for these entries labeled by Defendant as “block billing” are sufficient to give an understanding as to what work was completed and the Court is able to adequately determine the reasonableness of the time spent.
6. Defendant also argues that “anticipated” fees claimed for time to be spent preparing for the instant hearing, reviewing and analyzing the opposition, and drafting the reply is unreasonable and should not be considered. The Court has adjusted these legal tasks as provided in this decision.

As modified by the Court, the billing rates allowed in this ruling are reasonable. Litigation in this day and age is expensive and upholding the professional standard required of attorneys will result in higher fees. The Court is persuaded that Plaintiff, and the firm undertook to resolve the matter prior to filing the lawsuit and therefore, fees incurred after having to file a lawsuit may not ultimately be unreasonable because the alleged aggrieved party has no other choice.

While it is true that templates are used by lawyers who practice in this particular field, some consideration must be given to the formulation and creation of these templates that ultimately serve to reduce overall the legal fees a client might otherwise incur if an attorney without this expertise was representing him.

In connection with the above considerations, the Court reduces these attorney’s hours as follows:

Sepher Daghighian – 7.5 hours²

Michael Rosenstein - .5 hours

Brian Murray – 9.9 hours

Kristina Koussherian – 1.5 hours

The Court also adds the following hours to these attorneys to account for the fees incurred at a lower reasonable rate:

² The Court deals with the review of the opposition to the motion, reply and attendance at the hearing further in this ruling.

Brian Murray – 5.0 hours

Kristina Kousherian – 7.4 hours

The chart below summarizes the Court's review of the billing and the reasonable attorney fees awarded:

Timekeeper	Hourly Rate	Hours Requested	Total Fee Requested	Hourly Rate Awarded	Hours reduced /Added	Hours Awarded	Subtotal Fees Awarded
Michael H. Rosenstein	\$700.00	2.2	\$1,540.00	\$575	(.5)	1.7	\$ 977.50
Sepehr Daghighian	\$625.00	13.0	\$ 8,125.00	\$525	(7.5)	5.5	\$2,887.50
Kristina Kousherian	\$375.00	25.2	\$ 9,450.00	\$375	(1.5) 7.4	31.1	11,662.50
Brian Murray	\$550.00	18.4	\$10,120.00	\$450	(9.9) 5	13.5	\$6,075.00
Miguel Ortiz	\$525.00	4.4	\$ 2,310.00	\$425	0	4.4	\$1,870.00
TOTALS:			\$ 31,545.00				\$23,472.50

Additional fees of \$2,500.00 are awarded to review and respond to the Opposition, prepare a Reply, appear at the hearing and prepare the Order.

The Court determines the costs of \$725.12 are reasonable.

In summary, the Court awards Plaintiff, as the prevailing party, his reasonable attorney fees in the total sum of \$25,972.50 plus costs in the amount of \$725.12, for a total of \$26,697.62.

Plaintiff is directed to give notice and prepare and serve the Order after hearing.

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CIVSB2326422

YOLANDA HILDRETH v. SILKROAD TRANZ, INC., et al

TENTATIVE RULING

Defendant Cedrick Desroy Ranglin's Pro Hac Vice Application:

The application of Alexandra Serpas to appear as counsel *pro hac vice* for Defendant Cedrick Desroy Ranglin is granted. Moving party is directed to give notice of ruling.

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CIVSB2607117

KENISHA FRANKLIN v. UNIQUE AUTO CENTER, et al

TENTATIVE RULING

Defendant Unique Auto Center's Petition to Compel Arbitration:

The unopposed Petition to Compel Arbitration is granted. All arbitrable claims alleged against Defendant Unique Auto Center is ordered to binding arbitration pursuant to Code of Civil Procedure section 1281.2 and the Federal Arbitration Act, 9 U.S.C. section 1 et seq.

The action is otherwise stayed as to Defendant American Contractors Indemnity Company pending the completion of arbitration. The Court vacated the TSC set for September 16, 2026, and sets a Status of Arbitration OSC for February 27, 2027, at 8:30

a.m. in Department S22. Moving party is directed to give notice of ruling and prepare and serve the Order.
